



United States Department of the Interior
BUREAU OF LAND MANAGEMENT
National Headquarters
Washington, DC 20240
<https://www.blm.gov>



**JUSTIFICATION FOR OTHER THAN FULL AND OPEN
COMPETITION Over \$250,000**

This document sets forth the justification and approval as required by 13.106-1(b).

1. Identification of the Agency and the Contracting Activity:

The Department of the Interior, Bureau of Land Management (BLM), Division of Wild Horses & Burros, requests Headquarters Acquisitions, Wild Horses & Burro team, to contract on a limited or sole source basis.

2. A description of the Supplies or Services required meeting the Agency's needs, including the estimated value:

The above contract provides off-range pasture and off-range corral services for up to [REDACTED] wild burros. This is a unique requirement as most WH&B contracts are for either pasture or corral services. These services require a hybrid of both pasture and corral services and. This is the only contractor that provides the specific services of both a pasture and a corral. The current contract expires on 3/31/2025 and this 12-month contract is necessary to continue providing care for these animals until a competitive contract can be awarded. The estimated total cost for this award is \$2,299,500.00. The estimate is based on a maximum of [REDACTED] burros for 365 days at [REDACTED] per day.

This will be a 12-month firm fixed price bridge contract with a period of performance of April 1, 2025 through March 31, 2026. To ensure a continuation of services, the BLM WH&B Acquisitions requires a 12-month bridge contract.

3. An identification of the statutory authority permitting other than full and open competition:

 X 41 U.S.C. 1901 – Simplified acquisition procedures (use when the simplified procedures for purchases of property and services for amounts not greater than the simplified acquisition threshold, or greater than the simplified acquisition threshold but not greater than \$5,000,000 if the action falls under FAR Part 13.5.

 41 U.S.C 1903 – Special emergency procurement authority (applies when in support of a contingency operation as defined in section 101(a) of title 10 or to facilitate the defense against or recovery from nuclear, biological, chemical, or radiological attack against the United States).

4. **A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:**

Contractor that has been providing both off-range pasture and corral care for these animals under contract for 12 years. There are no existing facilities available to receive all the animals currently at this facility. If the bridge contract cannot be awarded to Despain to continue providing these services, BLM must remove the animals from the facility. Removing the animals will require considerable time and expense.

The bridge will allow for:

- a) Re-procurement cycle (Solicitation & Award) of new requirement estimated at approximately [REDACTED]. This represents a base year and 4 option years at [REDACTED] per year.
- b) NEPA EA - can take 6 months to 24 months for NEPA process as well as site visits to each area.
- c) Relocation of approximately [REDACTED] animals at 45 burros per truck - required if incumbent is not the awardee.

5. **A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:**

Despain submitted a price proposal in the amount of [REDACTED]. The proposed price is 1.3% higher than the current contract price ([REDACTED]).

The contracting officer determined that the price to be fair and reasonable. The determination is based on comparison of the increase from the current price and the most recent CPI data available. The [CPI all items index](#) rose 2.9 percent for the 12 months ending December 2024.

$$[REDACTED] \text{ (unit price)} \times [REDACTED] \text{ (animals)} \times 365 \text{ (days)} = \$2,328,700.00$$

6. **A description of the Market Research conducted (see FAR Part 10) and the results or a statement of the reason Market Research was not conducted:**

Very little market research was conducted for this effort. Conducting extensive new research and findings would not result in a new award due to the lengthy approval process for potential awardees. The National Environmental Policy Act (NEPA) EA process for new contractors can take six to twenty-four months.

7. **Any other facts supporting the use of Other Than Full and Open Competition:**

An RFP to fulfill this requirement is in progress and award is expected by March 2026 (140L0125R0005). The period of performance of this action aligns with the expected award of a new competitive contract. The timeline to achieve award includes site visits and EAs for multiple offerors which are time consuming endeavors. Presently, no other existing pasture or corral facilities have capacity to care for this inventory of burros. The requested extension is necessary to continue pasture care of these burros.

until new capacity is secured under contract.

8. **A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the Supplies or Services required:**

The pending RFP for new off-range pasture services will provide full and open competition for any potential vendors to submit new proposals. The current request is specific to continuing pasture care services until award of new services can be made.

9. **Certification:**

I certify that any supporting data that is the responsibility of technical or requirements personnel (i.e. verifying the Government's minimum needs or schedule requirements or other rationale for other than full and open competition) and which form a basis for the justification have been certified as complete and accurate:

(Signature) _____ (Date) _____

(Type or Print Name): _____
Contracting Officer's Representative

I certify that the justification is accurate and complete to the best of my knowledge and belief:

(Signature) _____ (Date) _____

(Type or Print Name): _____
Contracting Officer

Reviewed/Concur/Approved by: (if applicable)

(Signature) _____ (Date) _____

(Type or Print Name): Kirsten Cortés-Bernard
Chief of the Contracting Office

Competition Advocate

Bureau of Land Management Competition Advocate